

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF New York

Index No.: _____

Date Purchased: _____

SUMMONS

-----X
EDUARDO VIDAL,

Plaintiff,

Plaintiff designates New
York County as the place of
trial.

vs.

The basis of venue is:

Place of Occurrence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE DEPARTMENT
OF THE CITY OF NEW YORK, POLICE OFFICER RALFI
HERNANDEZ AND POLICE OFFICER DENNY ACOSTA,

Plaintiff resides at:
155 Audubon Avenue
New York, N.Y. 10032

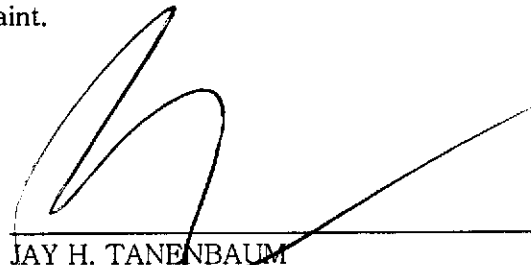
Defendants.

County of New York

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: :New York, New York
January 16, 2016



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-15J-0088

TO:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER RALFI HERNANDEZ
c/o 33rd Precinct
2207 Amsterdam Avenue
New York, New York 10032

POLICE OFFICER DENNY ACOSTA
c/o 33rd Precinct
2207 Amsterdam Avenue
New York, New York 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF New York

VERIFIED COMPLAINT

-----X
EDUARDO VIDAL,

Index No.:

Date Purchased:

Plaintiff,

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE DEPARTMENT
OF THE CITY OF NEW YORK, POLICE OFFICER RALFI
HERNANDEZ AND POLICE OFFICER DENNY ACOSTA,

Defendants.
-----X

Plaintiff, by his attorney, Law Offices of Jay H. Tanenbaum, complaining of the
Defendants, respectfully allege, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1: That at all times hereinafter mentioned, the plaintiff were and still are resident of the
County of New York, City and State of New York.

2: That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and
still is a municipal corporation duly organized and existing under and by virtue of the laws of the
State of New York.

3: That at all time hereinafter mentioned, defendant, THE NEW YORK CITY POLICE
DEPARTMENT, was and still is a municipal corporation and/or a public benefit corporation duly
organized and existing under and by virtue of the laws of the State of New York.

4: That on the 10th day of February, 2015, of that day, defendant, POLICE OFFICER RALFI HERNANDEZ was an employee of defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

5: That on the 10th day of February, 2015, defendant, POLICE OFFICER DENNY ACOSTA was an employee of defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

6: That on the 10th day of February, 2015, officers employed by defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, while acting within the scope of their employment, plaintiff, EDWARD VIDAL, was falsely arrested without probable cause and arrested without justification without cause and without excuse.

7: That on the 10th day of February, 2015, defendants, POLICE OFFICER RALFI HERNANDEZ and DENNY ACOSTA, were employees of defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, while acting within the scope of their employment, plaintiff was falsely arrested without probable cause and arrested without justification without cause and without excuse.

8: That on February 10, 2015, the plaintiff, EDUARDO VIDAL was lawfully and rightfully inside Planet Fitness located at 4168 Broadway, New York, New York, the plaintiff, was caused to sustain injuries when he illegally detained, arrested and at which time and place he suffered great embarrassment, mortification and mental anguish and subjected to great humiliation and disgrace in being so falsely and illegally detained as a common criminal. The plaintiff, EDUARDO VIDAL, was then hindered and prevented from performing and transacting his affairs and

business; the plaintiff became sick, sore, lame and disabled and remains so; has suffered and still suffers great mental and physical pain and has suffered severe nervous shock.

9: That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were careless and negligent in the hiring, training and supervision of it's police officers, and more particularly, the officers which were involved in the arrest and detention of the plaintiff, EDUARDO VIDAL, herein.

10: That as a result of the aforementioned negligent and intentional acts of the defendants, their agents, servants and/or employees, the plaintiff, EDUARDO VIDAL, became sick, sore, lame and disabled and remained so; he suffered great physical and mental pain and has suffered severe mental and physical injuries and nervous shock, and he has been unable to attend to his usual duties for some period of time.

11: That as a result of the intentional acts of the defendants, their agents, servants and/or employees, plaintiff' s rights under the Fourth and Fourteenth Amendments of the Constitution of the United States were violated.

12: That as a result of the foregoing, the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction herein.

AS AND FOR A SECOND CAUSE OF ACTION

13: The plaintiff, EDUARDO VIDAL, incorporates the first cause of action of this Complaint in its entirety.

14: That the stop and detention of the plaintiff herein was made without a warrant or other legal process and without justification, unprovoked, warning, probable cause and was unlawful, and that upon information and belief, no crime had been committed and there was no reason or cause for the defendants to think that the plaintiff, EDUARDO VIDAL had committed any crime.

15: That prior to the detention of the plaintiff, he had enjoyed a good reputation in and about THE CITY OF NEW YORK.

16: That the plaintiff was detained by defendants and deprived of his freedom for several hours.

17: That the plaintiff, EDUARDO VIDAL was wholly innocent of the offenses of which he was detained and threatened with arrest, and by reason of said assault, false, illegal detention, imprisonment as aforesaid, the plaintiff suffered great embarrassment, mortification and mental anguish and subjected to great humiliation and disgrace in being so falsely and illegally detained as a common criminal. The plaintiff was then hindered and prevented from performing and transacting his affairs and business; the plaintiff became sick, sore, lame and disabled and remains so; has suffered and still suffers great mental and physical pain and has suffered severe nervous shock.

18: That as a result of the foregoing, the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction herein.

19: That an application has been made to the Court by Order To Show Cause (Index No.: 159872/2015) for leave to file a late notice of claim and to deem the notice timely served within the statutory 90-day limit nunc pro tunc. That, the plaintiff has commenced the within action against the defendants prior to the expiration of the deadline. Defendants did not request plaintiff to testify at an oral examination pursuant to the General Municipal Law within thirty (30) days of service of the Order with Notice of Entry and Notice of Claim upon the municipality. That heretofore plaintiff duly served on November 20, 2015, upon, presented to and filed with THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, a Notice of Claim, in writing, sworn to by the plaintiffs, setting forth:

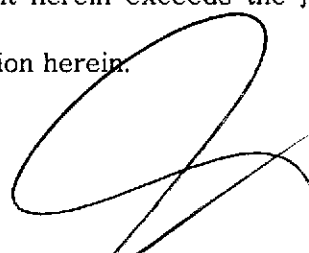
- (a) The name and post office address of said claimant and his attorney;
- (b) The nature of the claim;
- (c) The time when, place where and manner in which the claim arose;
- (d) The items of damages and injuries claimed to have been sustained insofar as then practicable.

20: That the defendant, THE CITY OF NEW YORK, and the Comptroller of The City of New York refused to make adjustments and/or payment thereof, and more than thirty (30) days have elapsed since the presentation of said claim as aforesaid.

21: That this action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

WHEREFORE, the plaintiff demands judgment against the defendants herein on all causes of actions, for such monetary relief as shall be called for by the proof and to be awarded by the court and/or jury; the amount of damages sought herein exceeds the jurisdiction limits of all lower courts which might otherwise have jurisdiction herein.

Dated: New York, New York
January 16, 2016



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-15J-0088

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff (s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff (s) is that plaintiff (s) reside (s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd./

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York)SS:

Eduardo Vidal

Being duly sworn, deposes and says:

That deponent is the plaintiff (s) in the within action; that deponent has read the foregoing complaint ~~bill of particulars~~, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd./

Eduardo Vidal

Sworn to before me this

16th day of January, 2016

JAY H. TANENBAUM
Notary Public, State of New York
No. 02TA5028657
Qualified in New York County
Commission Expires June 6, 2018

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EDUARDO VIDAL,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK
CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER RALFI
HERNANDEZ AND POLICE OFFICER DENNY ACOSTA,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

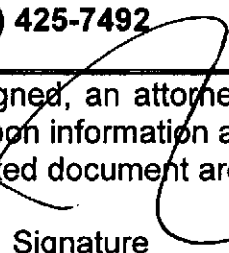
TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
Tel No.: (212) 422-1765
Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in
the Courts of New York State, certified that, upon information and belief and reasonable
inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 19, 2016

Signature 

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM